

When, If Ever, Is War Just? An Introduction to Just War Theory

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GRADE LEVEL	DURATION	TOPICS
Grades 11-12 / Intro College	60 minutes	Political Philosophy, Ethics

“Just war theory holds that war can sometimes be morally justified, and even then only if fought in certain ways — but who gets to decide when a cause is just, and can any war really stay within moral limits once it begins?”

Learning Objectives

By the end of this lesson, students will be able to:

- Distinguish jus ad bellum (justice of resorting to war) from jus in bello (justice in the conduct of war), and state the main criteria under each.
- Apply the jus ad bellum criteria to a hypothetical case of a nation considering war.
- Evaluate a scenario for compliance with jus in bello principles and identify the tension between military necessity and these moral limits.

Materials Needed

- Whiteboard
- Printed handout listing and briefly defining the jus ad bellum and jus in bello criteria
- Case-study cards describing a hypothetical nation deciding whether to intervene militarily to stop an ongoing atrocity in a neighboring country
- Two-column graphic organizer (jus ad bellum / jus in bello) for the case analysis

Lesson Procedure

Hook: Should They Intervene?

8 min

Present a hypothetical scenario: Country A is committing mass atrocities against a minority population, and neighboring Country B is militarily capable of intervening but would suffer casualties and international backlash. Poll students on whether Country B should intervene and record their initial reasoning on the board.

Direct Instruction: Two Separate Questions

18 min

Introduce just war theory's core division: jus ad bellum, whether it is right to go to war at all, with criteria including just cause, legitimate authority, right intention, proportionality, last resort, and reasonable chance of success; and jus in bello, whether the war is being fought rightly, with criteria including discrimination (non-combatant immunity) and proportionality in specific engagements. Emphasize that a war can satisfy one category and fail the other.

Small-Group Case Analysis: Jus ad Bellum

15 min

In groups, students apply the jus ad bellum criteria to the hook scenario one at a time, using the graphic organizer to evaluate each criterion and reaching a group verdict on whether intervention would be justified.

Whole-Class Discussion: Jus in Bello and Its Tensions

13 min

Extend the scenario: intervention begins, and a strike on a legitimate military target risks significant civilian casualties. Debate how discrimination and proportionality apply here, and where military necessity and moral limits come into tension.

Closure

6 min

Return to the initial poll and discuss whether the criteria covered in class changed anyone's reasoning, and whether just war theory helped clarify or complicate the moral question.

Discussion Questions

- 1 Who has the legitimate authority to declare that a cause is 'just' enough to justify war, and what happens when the same conflict looks different depending on whose authority you ask?
- 2 Is it possible to fight a war justly (jus in bello) even if the decision to enter it was unjust (violated jus ad bellum)? Should soldiers be held to the in bello standards regardless of whether their leaders satisfied the ad bellum ones?
- 3 The principle of proportionality appears in both jus ad bellum and jus in bello. Is 'proportionality' precise enough to actually guide real decisions, or is it so vague that it can justify almost anything after the fact?
- 4 Does the non-combatant immunity principle hold up in modern warfare, where combatants sometimes deliberately embed among civilian populations? What should discrimination require in that context?
- 5 Some critics argue that just war theory, by making some wars seem morally legitimate, makes war too easy to justify and undermines a stronger presumption against violence altogether. Do you find this criticism persuasive?

Assessment

Students write a policy brief evaluating a specific historical or current military intervention against both the jus ad bellum and jus in bello criteria covered in class, reaching and defending a verdict on whether the action was, on balance, justified.



Extension Activity

Have students research a specific historical conflict and identify at least one action within it that arguably violated jus in bello principles, such as discrimination or proportionality, even if the overall cause might satisfy jus ad bellum criteria, and write a short analysis of what this split verdict suggests about the limits of just war theory.

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